

Present:

Mr. Justice A.K.M. Asaduzzaman

Civil Revision No. 258 of 2023

Sree Gopal Chandra Dey

..... Petitioner.

-Versus-

Sreemati Sujata Rani and others

.....Opposite parties.

Mr. Robin Chandra Paul, Advocate

.....For the petitioner.

Mr. Md. Shariful Islam, Advocate with

Mr. Shafiq Rayhan Shawon, Advocate

.....For the Opposite parties

Heard and judgment on 30th November, 2023.

A.K.M.Asaduzzaman,J.

This rule was issued calling upon the opposite party to show cause as to why the judgment and order dated 15.11.2022 passed by the Additional District Judge, 2nd Court, Satkhira in Miscellaneous Appeal No.15 of 2011 sending the case back on

remand after reversing the judgment and order dated 14.11.2010 passed by the Assistant Judge, Kalaroa, Satkhira in Miscellaneous Case No. 38 of 2006 dismissing the case should not be set aside.

Opposite party No.1 as pre-emptor filed Miscellaneous Case No. 38 of 2006 against the pre-emptee petitioner and others before the Court of Assistant Judge, Kolaroa, Satkhira for pre-emption under section 96 of the State Acquisition and Tenancy Act, 1950 (S.A. &T. Act).

Pre-emptors case in short, inter alia, is that land appertaining to S.A. khatian No. 200, Dag No.229, land measuring 50 decimals has been owned and possessed by Ishak Dali, Sikandar Gazi and Ali Biswas, and land appertaining to S.A. Khatian No. 187, Dag No. 217, has been possessed by Gour Pada Daptari. The said 60 decimals land of S.A. khatian No.200 has been purchased by Gour Chandra Shil and Sree Grish Chandra Shil in equal shares vide kabala No. 3156 dated 27.11.1965. Thereafter Grish Chandra Shil sold and transferred 30 decimals of land in favour of Surjya Kumar Shil vide registered kabala No. 3261 dated 25.08.1993. Surjya Kumar Shil transferred 15 decimals of land in favour of the pre-emptor Sree Shujata Rani

vide kabala dated 26.09.1993 and who is in peaceful possession of the land and therefore, a co-sharer by purchase. Gour Pada Shil again purchased 19 decimals of land in S.A. Dag No. 217 vide kabala dated 27.11.1965 and acquired peaceful possession of the land by mutating his name. While in peaceful possession of the land, Gour Pada transferred the suit property in favour of the present petitioner and took possession of the same on 05.05.2006. The pre-emptor after being aware of the sale in favour of the present petitioner obtained the certified copy of the disputed kabala and filed the instant case for pre-emption.

Petitioner as pre-emptee contested the case by filing written objection denying the plaint case stating, inter alia, that the land appertaining to S.A. khatian No. 200 measuring 60 decimals has been purchased by Gour Chandra Shil and Grish Chandra Shil in equal share vide Kabala dated 27.11.65. Gour Chandra Shil while in peaceful possession of land, by mutating his name vide Misc. Case No. 497 (IX-I) 2005-6, opened khatian No. 200/1, transferred 30 decimals of land in Dag No. 329 and 19 decimals of land in Dag No. 217 in favour of the pre-emptee petitioner vide kabala No. 809 dated 03.04.2006, and Gour Chandra again

transferred of 1 decimal of land in favour of his son, Dilip, in Dag No. 229 which is adjacent to the land of the pre-emptor. The pre-emptor was aware about the disputed kabala as her husband Dilip purchased 1 decimals of land in Dag No. 229 and therefore, prayed for dismissing the suit.

Trial court framed the following issues.

- i) Whether the case is maintainable to its present form?
- ii) Whether the pre-emptor is a co-sharer in the case jote?
- iii) Whether the pre-emption case, is allowable or not?
- iv) Whether the plaintiff is entitled to get the relief as prayed for?

During trial pre-emptor examined one witness as P.W.1 and pre-emptee examined 3 D.Ws.

The learned Assistant Judge dismissed the case by its judgment and order dated 14.11.2010.

Challenging the said judgment and order pre-emptor preferred Misc. Appeal No.15 of 2011 before the Court of District

Judge, Satkhira, which was heard on transfer by the Additional District Judge, 2nd Court, Satkhira, who send back the case on remand by its impugned judgment and order dated 15.11.2022 after setting aside the judgment and order of the trial court dated 14.11.2010.

Challenging the said judgment and order pre-emptee petitioner obtained the instant rule.

Mr. Robin Chandra Paul, the learned Advocate appearing for the petitioner drawing my attention to the impugned judgment submits that although the trial court found pre-emptor is not a co-sharer as well as the claim of contiguous land holder not been there in the pre-emption case and is an afterthought accordingly disallowed the pre-emption case. But the appellate court sent back the case on remand to the trial court for deciding the matter afresh on the point of contiguous land ownership illegally, the impugned judgment is thus not sustainable in law. The learned advocate further submits that when the pre-emptor failed to prove his case as a co-sharer in the suit jote by adducing any evidence, pre-emption case ought to have been rejected. The appellate court being the last court of fact without at all discussing the evidence

on record most arbitrarily reversed the findings of the trial court and sent back the case on remand illegally. By way of supplementary affidavit, the learned advocate further submits that the order of remand appears to be illegal since both the party adduced evidences in court and the appellate court has got the power to settle the issues in the suit and decide the case on merit by himself without sending back the case of remand under Order 41 Rule 24 of the Code of Civil Procedure, accordingly the impugned order of sending back the case on remand to the trial court appears to be illegal and it is not sustainable in law. He finally prays that the impugned order may be set aside and the rule may be made absolute.

Mr. Md. Shariful Islam, the learned advocate appearing for the pre-emptor opposite party submits that the impugned rule was obtained against the order of sending back the case on remand to the trial court but upon perusal of the revisional application and the ground taken thereon it will appear that there is not a single ground raised or taken by the pre-emptee petitioner as to why the order of remand as been passed by the appellate court was illegal or not justifiable. He further submits that the point raised by the

petitioner here are the point on merits, unless and until, the court below decide the matter on merit taking into consideration the evidences adduced in the case it would not be justified to decide the same in the instant rule, which is not in issue on merits of the case. He finally prays that when the appellate court has rightly found that point raised by the pre-emptor i.e. on his claim of pre-emption as a contiguous land holder are very much there in the plaint itself is a finding and observation of the trial court on which the pre-emption case was rejected as not been maintainable has rightly been reversed by the appellate court and sent back the case on remand to the trial court rightly to decide the case on merits. The rule thus contains no merits, accordingly it may be discharged.

In reply to the submission of the learned advocate for the petitioner he further submits that since there was no issues on the point of contiguous land holder as well as pre-emptor could not get an opportunity to prove his case by adducing further evidence, he may be given an opportunity to place his further evidence if the appellate court is directed to decide the suit on merit after resettling the issues.

Heard the learned Advocate and perused the L.C.R. and the impugned judgment.

This is a pre-emption case. Pre-emptor claim the suit property, which has been sold to pre-emptee, who is a stranger in the suit jote as a co-sharer as well as contiguous land holder. Trial court dismissed the pre-emption case holding that the point taken by the pre-emptor i.e. he is a co-sharer owner of the suit jote since not been there in the plaint, the instant case is not maintainable but the appellate court while scrutinizing the record has come to a finding and observation that:

"প্রকৃতপক্ষে ছায়েল এই মামলায় শরিক সূত্রে নালিশী জমির অগ্রক্রয়ের প্রার্থনা করেননি বরং ছায়েল নালিশী জমির পার্শ্ববর্তী জমির প্রজা হিসাবে নালিশী জমি অগ্রক্রয়ের প্রার্থনা করেছেন। ছায়েলপক্ষের দাখিলী দরখাস্তের ৪নং দফার শেষে উল্লেখ করেছেন যে, ছায়েল অত্র জমায় কবলা খরিদ সূত্রে এবং মিউটেশন করার কারণে নালিশী জমা দুইটি পার্শ্ব শরিক হইতেছে। সেকারণে ছায়েল অত্র দরখাস্ত করার লোকাস স্ট্যান্ডি রহিয়াছে। তাছাড়া দরখাস্তের ৭নং দফার শেষে উল্লেখ আছে যে, পক্ষন্তের ছায়েল নালিশী জমায় কো-শেয়ারার বাই পারচেজ এবং কন্টিগুয়াস ল্যান্ড হোল্ডার হইতেছেন।

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He further observed that:

"যেহেতু এই মামলাটি গত ০১/০৮/২০০৬ইং তারিখ দাখিল হয়েছে তাই সেই সময়ে The State Acquisition and Tenancy Act, 1950 এর ৯৬ ধারার বিধান অনুযায়ী নালিশী জমির লাগা পার্শ্ববর্তী জমির মালিকেরও (Contiguous land holder) অগ্রক্রয়ের দাবী করার সুযোগ ছিল। বিচারিক আদালতের বিজ্ঞ বিচারক তর্কিত রায়ে ছায়েল নালিশী জমির লাগা পার্শ্ববর্তী জমির মালিক (Contiguous land holder) হিসাবে অগ্রক্রয়ের দাবী করেননি বলে উল্লেখ করেছেন কিন্তু তা সঠিক নয়। পূর্বে উল্লেখিত দরখাস্তের ৪ ও ৭নং দফার শেষ অংশে ছায়েল নালিশী জমির লাগা পার্শ্ববর্তী জমির মালিক (Contiguous land holder) হিসাবেও অগ্রক্রয়ের দাবী করেছে বলে দেখা যায়। বিচারিক আদালতে বিজ্ঞ বিচারকে এই বিষয়ে দৃষ্টিপাত করার উচিত ছিল।"

The issue on the point of whether the pre-emptor is a owner of the contiguous land holder or not is not there in the issue as framed by the trial court is not correct as pre-emptor urged the same in the pre-emption case, which has rightly been pointed out by the appellate court. Taking into consideration of this as there is no issues and for settling the matter, the appellate court appears to send back the case on remand to the trial court.

Order 41 rule 24 of the Code of Civil Procedure speaks that:

"Where the evidence upon the record is sufficient to enable the Appellate Court to pronounce judgment, the Appellate Court may, after resettling the issues, if necessary, finally determine the suit, notwithstanding that the judgment of the Court from whose decree the appeal is preferred has proceeded wholly upon some ground other than that on which the Appellate Court proceeds."

Upon going through the above provision of law, it appears that legislature has given to the appellate court to resettle the issue, if it is omitted by the court below and decide the matter on merits and as such that cannot be a ground for sending back the suit on remand to the trial court. The appellate court by himself can decide the dispute raised in the suit by resettling and adjusting the issues as well as giving an opportunity to either party to adduce further evidences if so they desire in order to have a proper adjudication of the matter. In the premises the judgment and order impugned here appears to be not proper as well as not in accordance with law.

I thus find merits in this rule.

In the result, the rule is made absolute and the judgment and order passed by the appellate court is hereby set aside.

The appellate court is hereby directed to decide the case on merits after resettling the issues on the point raised upon allowing both the parties to adduce further evidence both oral and documentary, if they so desire and decide the matter on merits expeditiously as early as possible.

The order of stay granted earlier is hereby recalled and vacated.

Send down the Lower Court Record along with the judgment at once.